

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 24, 2026 TIME: 8:30 A.M.

The demurrers are overruled as moot.

Self-represented plaintiff Kimberley Nores' initial complaint was filed May 1, 2026, and alleges three causes of action against defendants Abbey Bille Wilkerson, Roderick Wilkerson and Lin Holliday related to an allegedly unlawful eviction.

Defendants Abbey Bille Wilkerson and Roderick Wilkerson filed their demurrer to the initial complaint on June 5, 2026. Defendant Lin Holliday filed her demurrer to the initial complaint on June 22, 2026, at 2:33 pm. Plaintiff thereafter filed her first amended complaint on June 22, 2026, at 3:14 pm. Pursuant to CCP §472(a), the demurrers are therefore moot since both address the initial complaint, not the first amended complaint.

No. 18CV03315

WESELOH et al. v. COUNTY OF SANTA CRUZ, et al.

PLAINTIFFS/PETITIONERS' MOTION FOR CHANGE OF VENUE

Plaintiffs' motion is denied.

Plaintiffs seek to change venue pursuant to Code of Civil Procedure sections 394, subdivision (a), and 397, subdivision (b).¹

Section 394, subdivision (a) provides: "An action or proceeding against a county [...] may be tried in the county [...] is situated, unless the action or proceeding is brought by a county [...] in which case it may be tried in any county, or city and county, not a party thereto and in which the city or local agency is not situated. [...] [A]ny action or proceeding brought by a county [...] within a certain county [...] against a resident of another county, city and county, or city, or a corporation doing business in the latter, shall be, on motion of either party, transferred for trial to a county, or city and county, other than the plaintiff, if the plaintiff is a county [...] and other than that in which the defendant resides, or is doing business, or is situated...."

Section 394 has been interpreted to extend to parties to a cross-action as well as the parties to an original action. (*Kennedy/Jenks Consultants, Inc. v. Superior Court* (2000) 80 Cal.App.4th 948, 954-957; *Ohio Casualty Ins. Group v. Superior Court* (1994) 30 Cal.App.4th 444, 448-451.)

Section 397, subdivision (b) provides that the court "may, on motion, change the place of trial" when "there is reason to believe that an impartial trial cannot be had therein."

¹ Further section references are to the Code of Civil Procedure.

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The court finds that neither statute applies and due to delay, plaintiffs have waived their ability to transfer. First, the mandatory transfer provision of section 394 would apply only where a county has brought an action against a non-resident plaintiff. Here, the County cross-claimed against plaintiffs for declaratory relief, quiet title, and County Code violations against various plaintiffs (pertinent to this motion, plaintiffs the Poncettas). (County's First Amended Cross-Complaint, May 13, 2020.) To facilitate entry of judgment and appellate review on the trial court's Statement of Decision, all three claims were determined in plaintiffs' favor in the judgment entered February 29, 2024. On appeal, County prevailed on its first two claims and the third was not addressed in the remittitur. At this stage in this lengthy litigation, County is no longer bringing any action against plaintiffs – it succeeded in its declaratory relief and quiet title cross-claims – and section 394's mandatory venue provision no longer applies. As to the County Code violation against plaintiffs the Poncettas, that claim is not subject to section 394; the County must enforce its local ordinances by filing for civil remedies in the Santa Cruz County Superior Court. (County Code § 1.12.070.)

Second, plaintiffs' delay prevents transfer. The right to a venue transfer can be waived by delay in bringing the motion. (See *Forster v. Superior Court* (1992) 11 Cal.App.4th 782, 787; *Newman v. County of Sonoma* (1961) 56 Cal.2d 625, 627-628 [an 11-month period between the settlement and the county's motion to change venue constituted unreasonable delay, particularly in light of the county's participation in litigation after the settlement and before the motion to change venue was filed]; *Thompson v. Superior Court* (1972) 26 Cal.App.3d 300, 310 [transfer improper following a seven month delay]; *Estate of Hart* (1951) 107 Cal.App.2d 60, 65 [transfer denial upheld after two year delay].) The court finds this motion is untimely; County's cross-complaint, which triggered section 394, was filed over six years ago. Since then, this case has been tried, appealed and returned to this court. Since the remittitur eight months ago, plaintiffs have continued to vigorously litigate – filing motions, participating in a mediation and site visit, and appearing at case management conferences.

Finally, plaintiffs have not established evidence of bias requiring any venue change pursuant to section 397. A motion pursuant to section 397(b) requires “a showing of actual prejudice to the moving party, and whether the showing has been made is left to the discretion of the trial court.” (*Ohio Casualty Ins. Group v. Superior Court* (1994) 30 Cal.App.4th 444, 452; see also *Paesano v. Superior Court* (1988) 204 Cal.App.3d 17, 21; *People v. Ocean S.R., Inc.* (1938) 24 Cal.App.2d 420, 427.) Plaintiffs argue the record “demonstrates intense political pressures and significant misleading press statements and local social media,” the County's alleged “illegitimate campaign to foment public outrage,” and imply bias by this court by incorrectly identifying Judge Jordan Sheinbaum, who worked on this case in his former capacity as an Assistant County Counsel, as a sitting civil judge.

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The court cautions plaintiffs' counsel in implying bias by judicial officers. Judge Sheinbaum is not in a civil assignment, but even if he was, all ethical canons to avoid the perception of impartiality would be upheld by this bench. Next, plaintiffs' evidence of bias amounts to copies of public social media posts, articles and op-eds from eight months ago, emails from 2017-18 by a former County Supervisor, and on reply, pictures of one man kicking the fencing surrounding the site. (Richard Decl., Exs. A, C, F, G, Supp. Ex. A.) These fail to establish that an impartial trial cannot occur here. Further, a venue transfer would likely cause significant delay and prejudice all parties, considering this case's voluminous record and procedural windings over the past eight years.

Plaintiffs' objections to the Declaration of Matthew C. Henderson are overruled.